



Bill Number: S.B. 1332

Kavanagh Floor Amendment

**Reference to: APPROPRIATIONS,
TRANSPORTATION AND TECHNOLOGY
Committee amendment**

Amendment drafted by: Kaytie Sherman

FLOOR AMENDMENT EXPLANATION

1. Requires the Auditor General, rather than the Arizona Department of Transportation, to conduct the comprehensive feasibility review of light rail expansion in Maricopa County in coordination with an independent transportation research entity.
2. Modifies the information that must be included in the light rail comprehensive feasibility review by adding:
 - a) the short-term economic effects of light rail construction on small and locally owned businesses;
 - b) an evaluation on the extent to which construction may impact affected businesses, including visibility impairment, access and parking availability; and
 - c) an analysis of the long-term economic benefits and costs between light rail and autonomous or semi-autonomous transit vehicles.
3. Removes ridership trends and post-pandemic usage patterns from the information that must be included in the feasibility review.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1332

(Reference to APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute

or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Light rail construction; state participation;
3 prohibition; report; delayed repeal; definitions

4 ~~[A. Notwithstanding any other law, this state may not provide state~~
5 ~~participation for any light rail construction project.]~~

6 ~~[B.]~~[A.] On or before December 31, 2027, the ~~{{department of~~
7 ~~transportation}}~~ {{auditor general}}, in coordination with an independent
8 transportation research entity, shall conduct a comprehensive feasibility
9 review of light rail expansion in Maricopa county and submit a report on
10 their findings. The report shall be submitted to the governor, the
11 president of the senate and the speaker of the house of representatives
12 and ~~[shall provide]~~ a copy [shall be provided] to the secretary of state
13 and to the mayor of Phoenix and each member of the Phoenix city council.
14 The comprehensive feasibility review may not presume the superiority of
15 any mode of transit and shall include:

16 1. Capital and operating cost comparisons between a light rail and
17 autonomous or semi-autonomous transit vehicles, including bus rapid
18 transit, passenger vans and shuttle systems.

1 2. ~~{{Environmental}}~~ {{A comparison of the environmental}} impact
2 per dollar invested for acquiring, constructing and operating a light
3 rail.
4 3. ~~{{Ridership trends and post-pandemic usage patterns}}~~ {{Analysis
5 of the long-term economic benefits and costs between light rail and
6 autonomous or semi-autonomous transit vehicles, including bus rapid
7 transit, passenger vans and shuttle systems.}}.
8 4. Flexibility, scalability and adaptability to population shifts.
9 5. Long-term maintenance and replacement costs.
10 6. Policy recommendations regarding future state involvement in
11 light rail construction.
12 7. Analysis of whether continuation, modification or
13 discontinuation of state participation in light rail expansion is
14 warranted.
15 {{8. The short-term economic effects of construction on small and
16 locally owned businesses located within or adjacent to proposed transit
17 corridors.
18 9. An evaluation to the extent to which construction activity may
19 impair visibility, access, parking availability, pedestrian traffic and
20 vehicular traffic to affected businesses and that shall estimate the
21 potential for lost revenue, workforce reductions, relocation or business
22 closure during the construction period.}}
23 ~~[C.]~~[B.] This act is repealed from and after June 30, 2028.
24 ~~[D.]~~[C.] For the purposes of this section:
25 1. "Light rail construction" means the planning, permitting or
26 physical construction of new fixed-guideway rail transit lines or
27 extensions.
28 2. "State participation" means any of the following:
29 (a) Appropriating state monies.
30 (b) Issuing state bonds or guarantees.
31 (c) Approving, certifying or matching monies by the department of
32 transportation.
33 (d) Approving state permits or other authorizations.
34
35 Enroll and engross to conform
36 Amend title to conform

JOHN KAVANAGH

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